



CHAPTER 36.

An Act to make temporary provision for the exemption of children from attendance at school to enable their employment in ingathering the potato crop.

[31st July 1947.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Where the Secretary of State is satisfied that the labour available for the ingathering of the potato crop of any year in Scotland or in any part thereof is insufficient, he may serve on the education authority for any area a notice stating that in his opinion it is desirable that such number as may be specified in the notice of the children residing in the area should be exempted on such days as may from time to time be notified to the authority by or on behalf of the Secretary of State from the obligation to attend school in order to enable them to be employed in the ingathering of the said crop.

Exemption of children from school attendance to assist in potato lifting.

(2) Subject to regulations under this section an education authority on whom a notice has been served under the foregoing subsection shall grant, on the application of the parent of any child residing in their area, exemption from the obligation to attend school on the days notified as aforesaid in order to enable the child to be employed in the ingathering of the potato crop and any child so exempted may be so employed notwithstanding anything in paragraph (a) of subsection (1) of section twenty-eight of the Children and Young Persons (Scotland) Act, 1937 :

*1 Edw. 8 &
1 Geo. 6. c. 37.*

Provided that—

- (i) exemption shall not be granted to any child unless he has actually attained the age of thirteen years; and

- (ii) the number of such exemptions in force at any one time shall not exceed the number specified in the notice.
- (3) The Secretary of State may make regulations—
 - (a) empowering education authorities to refuse or withdraw exemptions under this Act on such grounds as may be specified in the regulations ;
 - (b) prescribing the conditions on which children exempted under this Act may be employed ;
 - (c) prohibiting the employment of children so exempted otherwise than in the ingathering of the potato crop ;
 - (d) directing that any regulations made under paragraph (b) or paragraph (c) of this subsection shall have effect as if contained in subsection (1) of section twenty-eight of the Children and Young Persons (Scotland) Act, 1937 ; and
 - (e) providing for any matters incidental to or consequential on any of the matters aforesaid.

Citation,
construction
and duration.

9 & 10 Geo. 6.
c. 72.

52 & 53 Vict.
c. 63.

2.—(1) This Act may be cited as the Education (Exemptions) (Scotland) Act, 1947, and shall be construed as one with the Education (Scotland) Act, 1946, and that Act and this Act may be cited together as the Education (Scotland) Acts, 1946 and 1947.

(2) This Act shall continue in force until the thirty-first day of December nineteen hundred and forty-eight and no longer, so however that the provisions of the Interpretation Act, 1889, relating to the effect of repealing enactments shall apply on the expiry of this Act in like manner as if this Act had then been repealed.

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(70827)

Northern Ireland Act, 1947.

10 & 11 GEO. 6. CH. 37.

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12. Application of Part III of Requisitioned Land and War Works Act, 1945, to Northern Ireland.

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